

Gyan Prakash Gupta v. Managing Director, Madhyanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 19.12.2023 · 2023:AHC-LKO:83851-DB · Writ-C No. 11150 of 2023 · **Liberty to file a fresh clause 6.5 objection; Engineer to pass a speaking order.**

HEADNOTE

Writ consigned to record with liberty to file, within two weeks, a fresh representation under Rule 6.5 of the Electricity Supply Code before the Executive Engineer, who must pass a speaking and reasoned order within four weeks thereafter in accordance with law.

FACTUAL SUMMARY

The petitioner, Gyan Prakash Gupta, approached the Lucknow Bench stating that his electricity connection had been disconnected on 13 September 2022 because of bills he called illegal. He said that certain orders had already been passed, yet his objections remained pending before the Executive Engineer, Vidyut Nagriya Vitran Khand, Thakurganj, Madhyanchal Vidyut Vitran Nigam Limited, Lucknow. He asked that those objections be considered and decided expeditiously.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

fresh objection before Executive Engineer

HOLDING

The petitioner is permitted to move a fresh representation or objection under Rule 6.5 of the Electricity Supply Code, with a certified copy of this order, before the Executive Engineer (respondent no. 2) within two weeks. That authority shall consider and decide the matter by a speaking and reasoned order within four weeks thereafter, in accordance with law. With that liberty the writ is consigned to record. The Court does not quash the bills or direct restoration. ¶ 1

PRINCIPLE TAGS

clause-6.5-representation-executive-engineer A consumer whose supply was disconnected and whose objections were said to be pending was permitted to file a fresh representation under clause 6.5 before the Executive Engineer, to be decided by a speaking order within four weeks. ¶ 1

alternate-remedy-clause-6.5 The writ was closed without a merits decision on the bills or the disconnection, the dispute being left to a fresh clause 6.5 objection to be considered in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILLS WERE ILLEGAL AND WHETHER THE DISCONNECTION OF 13.09.2022 WAS JUSTIFIED.

Left to the Executive Engineer on a fresh clause 6.5 objection. ¶ 1